
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of [...].

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Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of [...]

Deliberation no. 7FR/2023 of July 24, 2023

The National Commission for Data Protection sitting in a restricted formation composed of Ms. Tine A. Larsen, Chair, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016,

on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection, in particular Article 41;

Having regard to the internal rules of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular Article 10 point 2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular Article 9;

Considering the following:

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During its deliberation session on December 9, 2022, the National Commission for Data Protection sitting in plenary session decided to open an investigation with the Municipal Administration of [...] (hereinafter: the “controlled entity”), located at [...], based on Article 38 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection (hereinafter: the “law of August 1, 2018”) and to appoint Mr. Alain Herrmann as the head of the investigation.

The said decision specified that the investigation conducted by the National Commission for Data Protection (hereinafter: the “CNPd”) aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the “GDPR”) and the law of August 1, 2018, as well as legal texts providing specific provisions regarding the protection of personal data, and more specifically the application and compliance with Articles 37.1. a) and 37.7 of the GDPR¹. The investigation specifically aimed to verify compliance with the obligation to appoint a data protection officer (hereinafter a “DPO”) and to communicate the contact details to the supervisory authority. The investigation followed a general check that the CNPD had conducted with all Luxembourg municipalities during the summer of 2022.

By email dated March 29, 2023, the head of the investigation transmitted the investigation file to the National Commission for Data Protection sitting in a restricted formation (hereinafter: the “Restricted Formation”), along with a proposal for closure under Article 10.2.a) of the CNPD's internal rules, as he considered that the investigation had not revealed any facts that he believed constituted a violation of the GDPR or the law of August 1, 2018. In this case, the head of the investigation explained that

“[i]nsofar as the controlled entity provided the CNPD with the DPO declaration dated September 10, 2021, as well as the DPO collaboration agreement concluded with the CGPD dated June 24, 2021, and the deliberation of the Municipal Council of September 9, 2021, approving said agreement, I am of the opinion that the

1 Deliberation No. [...] of December 9, 2022, of the National Commission for Data Protection regarding the opening of an investigation mission with the Municipal Administration of [...].

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The data controller has met all the expectations set forth in the context of the investigation or has presented mitigation measures that I consider sufficient." The Restricted Formation examined the case during the deliberation session on April 12, 2023.

It follows from the investigation file that by letter dated March 22, 2021, the subject of the investigation, in the context of a complaint, sent an excerpt from the minutes of the deliberations of the College of Aldermen dated March 18, 2021, certified as a true copy on March 19, 2021, designating the Government Commissioner for Data Protection with the State as the DPO.

Furthermore, in response to the opening letter of investigation dated February 3, 2023, the subject of the investigation sent to the CNPD, by letter dated February 20, 2023, a copy of its DPO declaration form signed on September 10, 2021. According to the explanations provided by the subject of the investigation, the DPO declaration had been officially notified to the CNPD on September 10, 2021, in the context of the same complaint.

The subject of the investigation also provided the CNPD on March 8, 2023, with the collaboration agreement concluded with the Government Commissioner for Data Protection with the State, dated June 24, 2021, as well as the deliberation from the session of September 9, 2021, whereby the Municipal Council approved said agreement aimed at designating the aforementioned Commissioner as the DPO of the municipality.

Therefore, the Restricted Formation agrees with the proposal of the head of the investigation to close the investigation in accordance with Article 10.2.a) of the aforementioned internal regulations.

In light of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

- to close the investigation opened during the session of December 9, 2022, of the National Commission for Data Protection with the Municipal Administration of [...].

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Belvaux, July 24, 2023,

The National Commission for Data Protection sitting in a restricted formation,

Tine A. Larsen Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of remedies

This administrative decision may be subject to an appeal for reform within three months following its

notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.